

Master Services Agreement

This Master Services Agreement (this "**Agreement**") is made and entered into as of March 4, 2026 (the "**Effective Date**"), between **Blackbird Analytics, Inc.**, a Delaware corporation ("**Blackbird**" or "**Vendor**"), and **Zenith Manufacturing Corp.**, a New York corporation ("**Zenith**" or "**Customer**"). Each is a "**Party**" and they are together the "**Parties**."

1. Engagement; Statements of Work

Customer engages Vendor on a non-exclusive basis to perform consulting and professional services as set forth in mutually executed Statements of Work ("**SOWs**"). Each SOW shall reference this Agreement, describe the scope, fees, timeline, acceptance criteria, and assigned personnel for the engagement, and shall be governed by this Agreement. In the event of any inconsistency between this Agreement and an SOW, this Agreement controls except where the SOW expressly identifies the specific section of this Agreement it modifies.

Services and Deliverables include all reports, software code, designs, analyses, recommendations, and other tangible or intangible work product produced for Customer pursuant to an SOW.

2. Payment Terms

Customer shall pay Vendor's invoices **net forty-five (45) days** from the invoice date. Vendor shall invoice Customer monthly in arrears for fees accrued during the prior month. **No late-payment interest accrues** on overdue amounts; however, Vendor reserves the right to suspend performance under any SOW upon thirty (30) days' written notice of non-payment if an undisputed invoice remains unpaid beyond ninety (90) days from the invoice date.

Customer may dispute any invoice in good faith by providing written notice within fifteen (15) days of receipt, identifying the specific items in dispute, and paying all undisputed amounts. The Parties shall negotiate in good faith to resolve disputes; unresolved disputes proceed to the dispute-resolution mechanism in Section 9.

Vendor's fees are exclusive of taxes; Customer is responsible for all applicable taxes other than those imposed on Vendor's net income.

3. Intellectual Property; Ownership of Deliverables

Vendor retains all right, title, and interest in and to the Deliverables, including all intellectual property rights therein. Customer is granted a perpetual, irrevocable, royalty-free, worldwide, non-exclusive license to use, copy, modify, and create derivative

works of the Deliverables solely for Customer's internal business purposes. Customer may not redistribute, sell, or otherwise commercialize the Deliverables to any third party.

Vendor's pre-existing intellectual property, tools, methodologies, and templates ("**Vendor Background IP**") are and remain Vendor's exclusive property. Customer's license under this Section extends to Vendor Background IP only to the extent embedded in or necessary to use the Deliverables.

Customer's pre-existing intellectual property remains Customer's exclusive property. Customer grants Vendor a limited license to use Customer's intellectual property solely as necessary to perform the Services.

4. Warranties

Vendor warrants only that: (a) the Services will be performed in a professional and workmanlike manner; (b) Vendor has the authority to enter into this Agreement; and (c) to Vendor's knowledge, the Deliverables do not infringe any third party's intellectual property rights known to Vendor at the time of delivery.

EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH ABOVE, VENDOR PROVIDES THE SERVICES AND DELIVERABLES "AS IS" AND DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. Vendor does not warrant that the Deliverables will meet Customer's specific requirements or that operation of the Deliverables will be uninterrupted or error-free.

Customer's exclusive remedy for any breach of the express warranties is, at Vendor's election, re-performance or refund of fees paid for the specifically non-conforming Service.

5. Indemnification

Vendor shall defend, indemnify, and hold harmless Customer from and against any third-party claims, damages, liabilities, costs, and reasonable attorneys' fees ("**Losses**") arising out of: (a) any third-party allegation that a Deliverable as delivered by Vendor infringes such third party's U.S. patent, copyright, trademark, or trade secret rights; (b) Vendor's gross negligence or willful misconduct; or (c) bodily injury or tangible property damage caused by Vendor's employees or agents in performing the Services.

Vendor's IP-infringement indemnity is uncapped to the extent the Loss arises from third-party intellectual-property claims; all other indemnity obligations remain subject to the limitations in Section 6.

The infringement indemnity excludes Losses arising from: (i) Customer's modifications to a Deliverable; (ii) Customer's combination of a Deliverable with materials not supplied by

Vendor; or (iii) Customer's use of a Deliverable outside the scope of the license granted herein.

Customer has no corresponding indemnification obligation to Vendor under this Agreement, except as expressly set forth in an SOW.

6. Limitation of Liability

EXCEPT FOR (A) VENDOR'S IP-INFRINGEMENT INDEMNIFICATION OBLIGATIONS (WHICH ARE UNCAPPED), (B) AMOUNTS OWED FOR SERVICES RENDERED, (C) A PARTY'S BREACH OF CONFIDENTIALITY, AND (D) A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, **EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID BY CUSTOMER TO VENDOR UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.**

NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, REVENUE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

7. Term and Termination

This Agreement commences on the Effective Date and continues in effect until **terminated for cause**. Neither Party may terminate this Agreement for convenience.

A Party may terminate this Agreement for cause if the other Party materially breaches this Agreement and fails to cure the breach within thirty (30) days after written notice of the breach. A Party may also terminate immediately upon written notice if the other Party becomes insolvent, files for bankruptcy, or is the subject of an involuntary bankruptcy petition not dismissed within sixty (60) days.

Termination of this Agreement does not terminate SOWs in progress unless the terminating Party so elects in its termination notice. Sections 3, 5, 6, 8, and the post-termination provisions of any SOW survive termination.

8. Confidentiality

Each Party shall protect the other Party's confidential information using a standard of care **consistent with industry practice for information of similar sensitivity**, and shall use such information solely to perform its obligations or exercise its rights under this Agreement. Confidentiality obligations continue for the term of this Agreement and for **two (2) years** following termination.

9. Governing Law; Dispute Resolution

This Agreement is governed by the laws of the State of New York, without regard to its conflict-of-laws principles. Any dispute arising hereunder shall first be submitted to senior executives of both Parties for good-faith resolution; if not resolved within thirty (30) days, the dispute shall be resolved by binding arbitration administered by JAMS under its Commercial Arbitration Rules, conducted in New York County, New York, by a single arbitrator. Either Party may seek injunctive relief in court without first proceeding to arbitration.

10. Miscellaneous

Entire Agreement. This Agreement, together with all SOWs, is the entire agreement between the Parties regarding its subject matter.

No Waiver. No waiver of any provision shall constitute a continuing waiver.

Independent Contractor. Vendor is an independent contractor; no agency, partnership, or employment relationship is created.

Counterparts. This Agreement may be executed in counterparts and via electronic signature.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

BLACKBIRD ANALYTICS, INC.	ZENITH MANUFACTURING CORP.
By: _____	By: _____
Name: Dr. Helena Ortiz	Name: Thomas Bauer
Title: President	Title: General Counsel